

SMALL CLAIMS COURT

Earnest Money Release Packet

Prepared for: Javon Williams & Jessica Cordero
Property: 727 S Sycamore Street, Ottawa, KS 66067
Prepared by: Kayleigh Biggs, Worth Clark Realty

What This Packet Is For

The seller of your home (Joni M. Scribner) is refusing to sign the Cancellation and Mutual Release Agreement. This means the title company (Security 1st Title) cannot release your \$500 earnest money deposit back to you without a court order.

This packet walks you through everything you need to do, step by step, to file in Small Claims Court and get that \$500 back. You do NOT need a lawyer. The process is designed for regular people to handle on their own.

Your Timeline — What Happened

Here is a summary of events that supports your case:

DATE	WHAT HAPPENED
Aug 3, 2026	Purchase contract signed. Earnest money of \$500 deposited with Security 1st Title.
Aug 13, 2026	You submitted an Inspection Notice (Offer to Renegotiate) requesting 6 repairs: roof replacement, 3 electrical fixes (GFCI outlets & bedroom light), radon mitigation system, and walnut tree removal.
Aug 15, 2026	Seller countered with ONLY 2 of your 6 requests (\$5,000 toward roof + radon up to \$850). The 3 electrical hazards and walnut tree were NOT agreed to. No full agreement was reached.
Aug 16, 2026	You sent a signed Cancellation and Mutual Release Agreement directing the \$500 be returned to you. Seller refused to sign.
Today	Seller still refuses to sign. Security 1st Title cannot release funds without a court order.

Step-by-Step: How to File

STEP 1 — Go to the Franklin County Courthouse

Franklin County District Courthouse
301 S Main Street, Ottawa, KS 66067
(785) 229-3410
Monday–Friday, 8:00 AM – 5:00 PM

Go to the clerk's office on the first floor and say:

"I need to file a Small Claims petition to get a court order to release my earnest money deposit."

STEP 2 — Ask for Form SC-100 (Small Claims Petition)

The clerk will give you a petition form. Here is exactly how to fill it out:

- Plaintiff (that's YOU): Javon Williams and Jessica Cordero
- Defendant (the seller): Joni M. Scribner
- Amount claimed: \$500.00
- Address of defendant: (give whatever address you have for the seller, or ask your agent Kayleigh)

STEP 3 — Write Your Reason (use this exact wording)

COPY THIS INTO THE "REASON" BOX ON THE FORM:

We entered into a purchase contract dated August 3, 2026 for the property at 727 S Sycamore Street, Ottawa, KS 66067. We deposited \$500 earnest money with Security 1st Title. During the inspection period, we submitted an Inspection Notice and Offer to Renegotiate requesting correction of six unacceptable conditions, including electrical hazards. The seller's counter-offer addressed only two of the six items and did not correct the safety hazards. No agreement was reached. We timely submitted a signed Cancellation and Mutual Release Agreement on August 16, 2026 directing that our \$500 earnest money be returned to us. The seller has refused to sign the mutual release. Security 1st Title is unable to disburse our funds without either the seller's signature or a court order. We respectfully request the court issue an order directing Security 1st Title to release the \$500 earnest money deposit to Javon Williams and Jessica Cordero.

STEP 4 — Pay the Filing Fee

The filing fee for a claim under \$500 in Kansas is approximately \$35–\$50. Pay at the clerk's window. Keep your receipt.

STEP 5 — Get Your Hearing Date

The clerk will give you a hearing date (usually 3–6 weeks out). Write it down here:

My hearing date: _____ Time: _____ Courtroom: _____

Documents to Bring — Make 3 Copies of Each

Bring 3 sets of the following documents: one for the judge, one for the defendant, one for yourself.

- **Document 1:**
- Inspection Notice (dated August 13, 2026) — shows you officially offered to renegotiate during the inspection period.
- **Document 2:**

- Your Resolution of Unacceptable Conditions (signed by you, August 13, 2026) — shows all 6 repairs you requested, including electrical hazards.
- **Document 3:**
- Seller's Counter-Resolution (signed by seller only, August 15, 2026) — shows seller only agreed to 2 of 6 items. NO full agreement was reached.
- **Document 4:**
- Cancellation and Mutual Release Agreement (signed by you, August 16, 2026) — shows you properly cancelled and directed the \$500 to be returned. Seller line is blank (refused to sign).

At the Hearing — What to Say

The judge will ask you to explain your situation. Keep it short and simple. Here is a script you can use:

WHAT TO SAY TO THE JUDGE:

"Your Honor, we entered into a purchase contract to buy a home at 727 S Sycamore Street in Ottawa. We paid a \$500 earnest money deposit held by Security 1st Title. During our inspection period, we found several unacceptable conditions, including electrical hazards. We followed the proper process and submitted a renegotiation request for six repairs. The seller only agreed to two of them and would not fix the safety issues. Because we could not reach an agreement, we exercised our right to cancel the contract within the inspection period and submitted a signed cancellation form asking for our \$500 back. The seller has refused to sign the cancellation. Security 1st Title told us they cannot release our money without either the seller's signature or a court order. We are asking the court to issue that order so we can get our earnest money back."

If the Judge Asks You Questions:

- "Were you within your inspection period when you cancelled?" — YES. The contract was signed August 3 and we cancelled August 16.
- "Did you give the seller a chance to fix the problems?" — YES. We submitted a formal renegotiation request and the seller countered. We could not reach a full agreement.
- "Did you sign the cancellation form?" — YES. Both of us signed it. The seller refused to sign their portion.
- "Who holds the earnest money?" — Security 1st Title holds the \$500 and requires a court order to release it since the seller will not cooperate.

Your Agent's Contact Information

If you have any questions before your hearing, contact your agent:

Kayleigh Biggs
Worth Clark Realty
kayleighsellskcre@gmail.com

You've got this! The documents clearly support your case.